

ARTICLE III
MEMBERSHIP, VOTING, MAJORITY OF OWNERS,
QUORUM, PROXIES

3.1 Membership. Except as otherwise provided herein, Ownership of a condominium unit in WESTBURY SQUARE TOWNHOMES is a prerequisite to membership in the Association.

Each membership together with all interests and rights thereunto appertaining shall terminate immediately without any action by the Association whenever a member ceases to own a condominium unit; provided, however such termination shall not relieve or release any such former owner from any liability or obligation arising from and occurring during the period of such ownership and membership in the Association, or impair any rights or remedies which the owners have, through the Association, or directly, against such former owner arising out of or in any way connected with such ownership, membership and the covenants and obligations incident thereto.

3.2 Voting. Each owner shall be entitled to the number of votes assigned to the condominium owned by him as set forth in Schedule "A" attached hereto and made a part hereof.

3.3 Eligible Votes. In any election or other voting held by the Association, only those votes held by owners of condominium units in WESTBURY SQUARE TOWNHOMES shall be eligible Votes.

3.4 Quorum. Except as otherwise provided in the Condominium Documents,

- a. **the presence in person or by proxy** of owners representing fifty percent (50%) of the Eligible Votes shall constitute a quorum, and
- b. when a quorum of Eligible Voters is present at any meeting, **a majority vote of the owners present, either in person or by proxy, shall be sufficient to either defeat or approve any proposed action.**

3.5 Proxies. Votes may be cast in person or by proxy. **Proxies must be filed with the Secretary or Assistant Secretary of the Association before the appointed time of the meeting** for which such proxy was given.